

Fines & Fees Relief Roadmap

Challenge court fines, license suspensions, and garnishment orders step by step.

Step 1 — Know What You Owe

- Request a complete itemized statement of all court debt from the clerk of court.
- Distinguish: fines (punishment), fees (court costs), restitution (victim-owed), interest.
- Virginia: court costs and fines generally have a 20-year collection window.

Step 2 — Apply for a Hardship Waiver

Virginia Form	File DC-41 (Petition for Reduction of Fines/Costs) with the original court.
Eligibility	Household income at or below 125% of federal poverty level.
What to Bring	Photo ID, proof of income, proof of dependents, list of all debts and monthly expenses.
Outcome	Court may reduce, waive, or convert to community service hours.

Step 3 — Challenge a License Suspension

- Virginia eliminated most license suspensions for unpaid court costs in 2020 (SB 1776).
- File a Petition for Restricted License if suspension is still active.
- Contact DMV directly to understand the specific suspension reason before any action.
- DC: appeal with DC Office of Administrative Hearings within 30 days of suspension.

Step 4 — Stop a Wage Garnishment

- Federal law limits garnishment to 25% of disposable income or 30x minimum wage — whichever is less.
- File a Claim of Exemption (Virginia: form DC-459) within 10 days of receiving notice.
- Exempt income: Social Security, SSI, child support, VA benefits, unemployment.
- If income is below the poverty line, all may be exempt — document and file immediately.

Payment Plan Script

Opening	"I want to resolve this debt but cannot pay in full. I request a payment plan based on my current income."
Income Statement	"My monthly income is \$[X] and necessary expenses are \$[Y], leaving \$[Z] available for repayment."
The Ask	"I request a plan of \$[AMOUNT] per month for [DURATION]."
If Denied	"Please document the denial in writing and provide a supervisor contact."

Virginia Hardship Waiver Eligibility

☐ Virginia resident	☐ Court debt owed to Virginia court
☐ Income at/below 125% federal poverty line	☐ Proof of income available
☐ Compliance with any existing payment plan	☐ Debt more than 2 years old

TIP: IRN can connect you with free legal assistance for fines/fees challenges. Contact IRNVP@pm.me. Many people successfully reduce or eliminate court debt.